

CITY OF BALTIMORE
ORDINANCE **26-094**
Council Bill 25-0116

Introduced by: Councilmember Jones
Cosponsored by: President Cohen and Councilmembers Dorsey, Conway, Middleton, Torrence,
Bullock, Blanchard, Ramos, Gray, Porter, Schleifer, and Glover
Introduced and read first time: November 10, 2025
Assigned to: Labor and Workforce Committee

Committee Report: Favorable, with Amendments
Council action: Adopted
Read second time: February 9, 2026

AN ORDINANCE CONCERNING

Security ~~Officers~~ Guards – Compensation

FOR the purpose of requiring a certain type of employer to provide specified minimum compensation to a certain class of employee; defining certain terms; providing for the effective dates of this Ordinance; providing for the termination of certain provisions of this Ordinance; and generally relating to compensation for security ~~officers~~: guards.

BY adding

Article 11 - Labor and Employment
Section 3-9
Baltimore City Code
(Edition 2000)

SECTION 1. BE IT ORDAINED BY THE MAYOR AND CITY COUNCIL OF BALTIMORE, That the Laws of Baltimore City read as follows:

Baltimore City Code

Article 11. Labor and Employment

Division I. Minimum Wage Law

Subtitle 3. Wage Requirements

§ 3-9. SECURITY ~~WORKERS~~. GUARDS.

(A) DEFINITIONS.

(1) IN GENERAL.

IN THIS SECTION, THE FOLLOWING TERMS HAVE THE MEANINGS INDICATED.

EXPLANATION: CAPITALS indicate matter added to existing law.
[Brackets] indicate matter deleted from existing law.
Underlining indicates matter added to the bill by amendment.
~~Strike-out~~ indicates matter stricken from the bill by amendment or deleted from existing law by amendment.

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~~(2) AVERAGE PER EMPLOYEE TOTAL BENEFIT RATE.~~

~~(i) IN GENERAL.~~

~~"AVERAGE PER EMPLOYEE TOTAL BENEFIT RATE" MEANS THE AVERAGE HOURLY COST OF PROVIDING ALL BONA FIDE FRINGE BENEFITS FOR A COVERED SECURITY OFFICER, INCLUDING:~~

~~(A) MEDICAL OR HOSPITAL CARE;~~

~~(B) A PENSION UPON RETIREMENT OR DEATH;~~

~~(C) COMPENSATION FOR INJURIES OR ILLNESS RESULTING FROM OCCUPATIONAL ACTIVITY, OR INSURANCE TO PROVIDE ANY OF THE FOREGOING; —~~

~~(D) UNEMPLOYMENT BENEFITS;~~

~~(E) LIFE INSURANCE;~~

~~(F) DISABILITY AND SICKNESS INSURANCE;~~

~~(G) ACCIDENT INSURANCE;~~

~~(H) THE COST OF AN APPRENTICESHIP OR OTHER SIMILAR EDUCATIONAL PROGRAM; AND~~

~~(I) VACATION AND HOLIDAY PAY.~~

~~(ii) EXCLUSIONS.~~

~~"AVERAGE PER EMPLOYEE TOTAL BENEFIT RATE" DOES NOT INCLUDE ALL OTHERWISE LEGALLY REQUIRED BENEFITS, WITH THE EXCEPTION OF:~~

~~(A) FEDERAL HOLIDAYS; AND~~

~~(B) THE SUPPLEMENT BENEFIT RATE REQUIRED BY § 3-1604(A)(2)(ii) OF THE STATE LABOR AND EMPLOYMENT ARTICLE.~~

~~(iii) EMPLOYEES INCLUDED IN CALCULATION.~~

~~"AVERAGE PER EMPLOYEE TOTAL BENEFIT RATE" IS CALCULATED AS AN AVERAGE AMONG COVERED SECURITY OFFICERS WHO ARE EMPLOYED AT A COMMERCIAL OFFICE BUILDING THAT IS:~~

~~(A) 350,000 SQUARE FEET OR MORE; AND~~

~~(B) LOCATED IN THE CITY.~~

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~~(3) AVERAGE PER EMPLOYEE WAGE RATE.~~

~~"AVERAGE PER EMPLOYEE WAGE RATE" MEANS THE AVERAGE WAGE FOR A COVERED SECURITY OFFICER WHO IS EMPLOYED AT A COMMERCIAL OFFICE BUILDING THAT IS:~~

~~(I) 350,000 SQUARE FEET OR MORE; AND~~

~~(II) LOCATED IN THE CITY.~~

(2) (4) COMPENSATION.

"COMPENSATION" MEANS ANY COMBINATION OF WAGES, BENEFITS, AND PAID TIME OFF.

(3) (5) COVERED SECURITY OFFICER. GUARD.

(I) IN GENERAL.

"COVERED SECURITY OFFICER" GUARD" MEANS ANY INDIVIDUAL EMPLOYED IN BALTIMORE CITY TO DO ANY OF THE FOLLOWING:

(A) PREVENT AND IDENTIFY AND REPORT THE THEFT, MISAPPROPRIATION, OR CONCEALMENT OF GOODS, WARES, MERCHANDISE, MONEY, BONDS, STOCK CERTIFICATES, OR OTHER VALUABLE DOCUMENTS, PAPERS, AND ITEMS;

(B) PREVENT AND IDENTIFY AND REPORT THE DAMAGE TO, INTRUSION UPON, OR THEFT OF REAL OR PERSONAL PROPERTY; AND

(C) PREVENT AND IDENTIFY AND REPORT ASSAULTS, GATE CRASHING, OR OTHER DISORDERS AT MEETINGS, EVENTS, OR PERFORMANCES.

"COVERED SECURITY GUARD" MEANS ANY INDIVIDUAL EMPLOYED IN BALTIMORE CITY BY A COVERED SECURITY EMPLOYER WHO PRINCIPALLY PERFORMS 1 OR MORE OF THE FOLLOWING FUNCTIONS:

(A) PROTECTS INDIVIDUALS OR PROPERTY FROM HARM, THEFT, OR OTHER UNLAWFUL ACTIVITY;

(B) DETERS, OBSERVES, DETECTS, OR REPORTS INCIDENTS IN ORDER TO PREVENT ANY UNLAWFUL OR UNAUTHORIZED ACTIVITY, INCLUDING UNLAWFUL OR UNAUTHORIZED INTRUSION OR ENTRY, LARCENY, VANDALISM, ABUSE, ARSON, OR TRESPASS ON PROPERTY; OR

(C) RESPONDS TO A TRIGGERED SECURITY SYSTEM ALARM IN ORDER TO PREVENT OR DETECT UNAUTHORIZED INTRUSION, ROBBERY, BURGLARY, THEFT, PILFERAGE, AND OTHER LOSSES OR TO MAINTAIN SECURITY OF A PROTECTED PREMISES.

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1 (ii) EXCLUSIONS.

2 “COVERED SECURITY OFFICER” GUARD” DOES NOT INCLUDE:

3 (A) A MARINE GUARD OR SHIP WATCHMAN, REGARDLESS OF WHETHER THE
4 GUARD OR WATCHMAN IS STATIONED ABOARD A SHIP OR ON A PIER; OR

5 (B) AN UNARMED EMPLOYEE OF A BAR, TAVERN, OR RESTAURANT.

6 (4) ~~(6)~~ COVERED SECURITY EMPLOYER.

7 ~~“COVERED SECURITY EMPLOYER” MEANS AN EMPLOYER THAT EMPLOYS 2 OR MORE~~
8 ~~COVERED SECURITY OFFICERS WITHIN THE CITY.~~

9 “COVERED SECURITY EMPLOYER” MEANS ANY PERSON, FIRM, LIMITED LIABILITY
10 COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY OR DEPARTMENT OF
11 SUCH FIRM, LIMITED LIABILITY COMPANY, CORPORATION, OR PUBLIC ENTITY
12 EMPLOYING 2 OR MORE COVERED SECURITY GUARDS OR INDIVIDUALS BEING
13 SELF-EMPLOYED AS A SECURITY GUARD ON EITHER A PROPRIETARY BASIS FOR ITS
14 OWN USE OR ON A CONTRACTUAL BASIS FOR USE BY ANOTHER PERSON, FIRM,
15 LIMITED LIABILITY COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY
16 THEREOF WITHIN THE CITY.

17 (5) MINIMUM COMPENSATION.

18 (i) IN GENERAL.

19 “MINIMUM COMPENSATION” MEANS THE COMPENSATION AMOUNT A COVERED
20 SECURITY EMPLOYER IS REQUIRED TO PAY TO A COVERED SECURITY GUARD
21 PURSUANT TO THIS SECTION.

22 (ii) EXCLUSIONS.

23 “MINIMUM COMPENSATION” DOES NOT INCLUDE ALL OTHERWISE
24 LEGALLY-REQUIRED BENEFITS, WITH THE EXCEPTION OF:

25 (A) FEDERAL HOLIDAYS; AND

26 (B) THE SUPPLEMENT BENEFIT RATE REQUIRED BY § 3-1604(A)(2)(II) OF
27 THE STATE LABOR AND EMPLOYMENT ARTICLE.

28 (B) COMPENSATION MINIMUM COMPENSATION DETERMINATION.

29 (1) IN GENERAL.

30 THE MINIMUM COMPENSATION AMOUNT FOR A COVERED SECURITY OFFICER GUARD IN
31 THE CITY MAY NOT BE LESS THAN THE HIGHER OF:

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(H) THAN, FOR THE GUARD 1 CLASSIFICATION ESTABLISHED BY THE UNITED STATES SECRETARY OF LABOR PURSUANT TO CHAPTER 67 OF 41 U.S.C. § 6701 ET SEQ., AS AMENDED, THE COMBINED VALUE OF THE MINIMUM WAGE RATE, HEALTH AND WELFARE RATE, AND PAID VACATION AND HOLIDAYS RATES SET FORTH IN THE LOCALITY WAGE DETERMINATION ISSUED BY THE ADMINISTRATOR OF THE WAGE AND HOUR DIVISION OF THE EMPLOYMENT STANDARDS DIVISION OF THE U.S. DEPARTMENT OF LABOR FOR THE AREA THAT INCLUDES THE CITY; ~~OR CITY~~.

~~(H) THE COMBINED VALUE OF:~~

~~(A) THE AVERAGE PER-EMPLOYEE WAGE RATE; AND~~

~~(B) THE AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE.~~

(2) *DETERMINATION BY WAGE COMMISSION.*

~~THE WAGE COMMISSION~~ COMMISSION, WITH THE ASSISTANCE OF THE OFFICE OF EQUITY AND CIVIL RIGHTS, SHALL ANNUALLY DETERMINE THE MINIMUM COMPENSATION AMOUNT REQUIRED UNDER PARAGRAPH (1) OF THIS SUBSECTION BY JULY 1 OF EACH YEAR.

(3) *EFFECTIVE DATE.*

THE MINIMUM COMPENSATION AMOUNT ESTABLISHED UNDER THIS SUBSECTION SHALL BE EFFECTIVE THE FOLLOWING YEAR FROM JANUARY 1 THROUGH DECEMBER 31.

(C) *POSTING REQUIREMENT.*

~~THE WAGE COMMISSION~~ OFFICE OF EQUITY AND CIVIL RIGHTS SHALL POST THE MINIMUM COMPENSATION DETERMINATION MADE UNDER SUBSECTION (B) OF THIS SECTION ON THE CITY'S WEBSITE NO LATER THAN JULY 1 OF EACH YEAR.

SECTION 2. AND BE IT FURTHER ORDAINED, That the Laws of Baltimore City read as follows:

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Baltimore City Code

Article 11. Labor and Employment

Division I. Minimum Wage Law

Subtitle 3. Wage Requirements

§ 3-9. SECURITY WORKERS, GUARDS.

(A) DEFINITIONS.

(1) IN GENERAL.

IN THIS SECTION, THE FOLLOWING TERMS HAVE THE MEANINGS INDICATED.

(2) AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE.

(i) IN GENERAL.

“AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE” MEANS THE AVERAGE HOURLY COST OF PROVIDING ALL BONA FIDE FRINGE BENEFITS FOR A COVERED SECURITY OFFICER, GUARD, INCLUDING:

(A) MEDICAL OR HOSPITAL CARE;

(B) A PENSION UPON RETIREMENT OR DEATH;

(C) COMPENSATION FOR INJURIES OR ILLNESS RESULTING FROM OCCUPATIONAL ACTIVITY, OR INSURANCE TO PROVIDE ANY OF THE FOREGOING;

(D) UNEMPLOYMENT BENEFITS;

(E) LIFE INSURANCE;

(F) DISABILITY AND SICKNESS INSURANCE;

(G) ACCIDENT INSURANCE;

(H) THE COST OF AN APPRENTICESHIP OR OTHER SIMILAR EDUCATIONAL PROGRAM; AND

(I) VACATION AND HOLIDAY PAY.

(ii) EXCLUSIONS.

“AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE” DOES NOT INCLUDE ALL OTHERWISE LEGALLY-REQUIRED BENEFITS, WITH THE EXCEPTION OF:

(A) FEDERAL HOLIDAYS; AND

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(B) THE SUPPLEMENT BENEFIT RATE REQUIRED BY § 3-1604(A)(2)(II) OF THE
STATE LABOR AND EMPLOYMENT ARTICLE.

(III) *EMPLOYEES INCLUDED IN CALCULATION.*

"AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE" IS CALCULATED AS AN AVERAGE
AMONG COVERED SECURITY OFFICERS GUARDS WHO ARE EMPLOYED AT A
COMMERCIAL OFFICE BUILDING THAT IS: IN THE CITY.

~~(A) 350,000 SQUARE FEET OR MORE; AND~~

~~(B) LOCATED IN THE CITY.~~

(3) *AVERAGE PER-EMPLOYEE WAGE RATE.*

"AVERAGE PER-EMPLOYEE WAGE RATE" MEANS THE AVERAGE WAGE FOR A COVERED
SECURITY OFFICER GUARD WHO IS EMPLOYED ~~AT A COMMERCIAL OFFICE BUILDING~~
~~THAT IS: IN THE CITY.~~

~~(i) 350,000 SQUARE FEET OR MORE; AND~~

~~(ii) LOCATED IN THE CITY.~~

(4) *COMPENSATION.*

"COMPENSATION" MEANS ANY COMBINATION OF WAGES, BENEFITS, AND PAID TIME
OFF.

(5) *COVERED SECURITY OFFICER. GUARD.*

(I) *IN GENERAL.*

~~"COVERED SECURITY OFFICER" MEANS ANY INDIVIDUAL EMPLOYED IN BALTIMORE
CITY TO DO ANY OF THE FOLLOWING:~~

~~(A) PREVENT AND IDENTIFY AND REPORT THE THEFT, MISAPPROPRIATION, OR
CONCEALMENT OF GOODS, WARES, MERCHANDISE, MONEY, BONDS, STOCK
CERTIFICATES, OR OTHER VALUABLE DOCUMENTS, PAPERS, AND ITEMS;~~

~~(B) PREVENT AND IDENTIFY AND REPORT THE DAMAGE TO, INTRUSION UPON,
OR THEFT OF REAL OR PERSONAL PROPERTY; AND~~

~~(C) PREVENT AND IDENTIFY AND REPORT ASSAULTS, GATE CRASHING, OR
OTHER DISORDERS AT MEETINGS, EVENTS, OR PERFORMANCES.~~

"COVERED SECURITY GUARD" MEANS ANY INDIVIDUAL EMPLOYED IN BALTIMORE
CITY BY A COVERED SECURITY EMPLOYER WHO PRINCIPALLY PERFORMS 1 OR
MORE OF THE FOLLOWING FUNCTIONS:

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1 (A) PROTECTS INDIVIDUALS OR PROPERTY FROM HARM, THEFT, OR
2 OTHER UNLAWFUL ACTIVITY;

3 (B) DETERS, OBSERVES, DETECTS, OR REPORTS INCIDENTS IN
4 ORDER TO PREVENT ANY UNLAWFUL OR UNAUTHORIZED ACTIVITY,
5 INCLUDING UNLAWFUL OR UNAUTHORIZED INTRUSION OR ENTRY,
6 LARCENY, VANDALISM, ABUSE, ARSON, OR TRESPASS ON PROPERTY; OR

7 (C) RESPONDS TO A TRIGGERED SECURITY SYSTEM ALARM IN ORDER TO
8 PREVENT OR DETECT UNAUTHORIZED INTRUSION, ROBBERY, BURGLARY,
9 THEFT, PILFERAGE, AND OTHER LOSSES OR TO MAINTAIN SECURITY OF A
10 PROTECTED PREMISES.

11 (II) EXCLUSIONS.

12 "COVERED SECURITY OFFICER" GUARD" DOES NOT INCLUDE:

13 (A) A MARINE GUARD OR SHIP WATCHMAN, REGARDLESS OF WHETHER THE
14 GUARD OR WATCHMAN IS STATIONED ABOARD A SHIP OR ON A PIER; OR

15 (B) AN UNARMED EMPLOYEE OF A BAR, TAVERN, OR RESTAURANT.

16 (6) COVERED SECURITY EMPLOYER.

17 "COVERED SECURITY EMPLOYER" MEANS AN EMPLOYER THAT EMPLOYS 2 OR MORE
18 COVERED SECURITY OFFICERS WITHIN THE CITY.

19 "COVERED SECURITY EMPLOYER" MEANS ANY PERSON, FIRM, LIMITED LIABILITY
20 COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY OR DEPARTMENT OF
21 SUCH FIRM, LIMITED LIABILITY COMPANY, CORPORATION, OR PUBLIC ENTITY
22 EMPLOYING 2 OR MORE COVERED SECURITY GUARDS OR INDIVIDUALS BEING
23 SELF-EMPLOYED AS A SECURITY GUARD ON EITHER A PROPRIETARY BASIS FOR ITS
24 OWN USE OR ON A CONTRACTUAL BASIS FOR USE BY ANOTHER PERSON, FIRM,
25 LIMITED LIABILITY COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY
26 THEREOF WITHIN THE CITY.

27 (7) MINIMUM COMPENSATION.

28 (I) IN GENERAL.

29 "MINIMUM COMPENSATION" MEANS THE COMPENSATION AMOUNT A COVERED
30 SECURITY EMPLOYER IS REQUIRED TO PAY TO A COVERED SECURITY GUARD
31 PURSUANT TO THIS SECTION.

32 (II) EXCLUSIONS.

33 "MINIMUM COMPENSATION" DOES NOT INCLUDE ALL OTHERWISE
34 LEGALLY-REQUIRED BENEFITS, WITH THE EXCEPTION OF:

35 (A) FEDERAL HOLIDAYS; AND

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(B) THE SUPPLEMENT BENEFIT RATE REQUIRED BY § 3-1604(A)(2)(II) OF
THE STATE LABOR AND EMPLOYMENT ARTICLE.

(B) ~~COMPENSATION~~ MINIMUM COMPENSATION DETERMINATION.

(1) *IN GENERAL.*

THE MINIMUM COMPENSATION AMOUNT FOR A COVERED SECURITY ~~OFFICER~~ GUARD IN
THE CITY MAY NOT BE LESS THAN THE HIGHER OF:

(I) FOR THE GUARD 1 CLASSIFICATION ESTABLISHED BY THE UNITED STATES
SECRETARY OF LABOR PURSUANT TO CHAPTER 67 OF 41 U.S.C. § 6701 ET
SEQ., AS AMENDED, THE COMBINED VALUE OF THE MINIMUM WAGE RATE,
HEALTH AND WELFARE RATE, AND PAID VACATION AND HOLIDAYS RATES SET
FORTH IN THE LOCALITY WAGE DETERMINATION ISSUED BY THE
ADMINISTRATOR OF THE WAGE AND HOUR DIVISION OF THE EMPLOYMENT
STANDARDS DIVISION OF THE U.S. DEPARTMENT OF LABOR FOR THE AREA
THAT INCLUDES THE CITY; OR

(II) THE COMBINED VALUE OF:

(A) THE AVERAGE PER-EMPLOYEE WAGE RATE; AND

(B) THE AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE.

(2) *DETERMINATION BY WAGE COMMISSION.*

THE ~~WAGE COMMISSION~~ COMMISSION, WITH THE ASSISTANCE OF THE OFFICE OF
EQUITY AND CIVIL RIGHTS, SHALL ANNUALLY DETERMINE THE MINIMUM
COMPENSATION AMOUNT REQUIRED UNDER PARAGRAPH (1) OF THIS SUBSECTION BY
JULY 1 OF EACH YEAR.

(3) *EFFECTIVE DATE.*

THE MINIMUM COMPENSATION AMOUNT ESTABLISHED UNDER THIS SUBSECTION SHALL
BE EFFECTIVE THE FOLLOWING YEAR FROM JANUARY 1 THROUGH DECEMBER 31.

(C) *POSTING REQUIREMENT.*

THE ~~WAGE COMMISSION~~ OFFICE OF EQUITY AND CIVIL RIGHTS SHALL POST THE MINIMUM
COMPENSATION DETERMINATION MADE UNDER SUBSECTION (B) OF THIS SECTION ON THE
CITY'S WEBSITE NO LATER THAN JULY 1 OF EACH YEAR.

(D) *COVERED SECURITY EMPLOYER REQUIREMENT.*

SUBJECT TO THE OTHER PROVISIONS OF THIS DIVISION I, A COVERED SECURITY EMPLOYER
SHALL, AT A MINIMUM, PAY EACH COVERED SECURITY ~~OFFICER~~ GUARD THE MINIMUM
COMPENSATION AMOUNT DETERMINED BY THE WAGE COMMISSION UNDER SUBSECTION
(B) OF THIS SECTION.

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1 (E) VIOLATION.

2 IT IS A VIOLATION OF THIS DIVISION I FOR A COVERED SECURITY EMPLOYER TO PAY A
3 COVERED SECURITY OFFICER GUARD LESS THAN THE MINIMUM COMPENSATION AMOUNT
4 REQUIRED BY THIS SECTION.

5 (F) EMPLOYER TO DISPLAY.

6 (1) IN GENERAL.

7 UPON THE TAKING EFFECT OF THE COMPENSATION DETERMINATION UNDER THIS
8 SECTION, A COVERED SECURITY EMPLOYER SHALL POST A SIGN, MEASURING AT
9 LEAST 3 BY 5 INCHES IN SIZE, THAT INCLUDES:

10 (I) THE REQUIRED COMPENSATION AMOUNT;

11 (II) A CITATION OF THE APPLICABLE SECTIONS OF CITY CODE; AND

12 (III) THE CONTACT INFORMATION FOR THE WAGE COMMISSION.

13 (2) LOCATION.

14 THE COVERED SECURITY EMPLOYER SHALL POST THE SIGN REQUIRED UNDER THIS
15 SUBSECTION:

16 (I) IN CLEAR VIEW OF EMPLOYEES; AND

17 (II) WHERE SIMILAR NOTICES ARE CUSTOMARILY POSTED.

18 (3) OECR TO POST.

19 THE OFFICE OF EQUITY AND CIVIL RIGHTS SHALL COMPILE AND POST ON THE CITY'S
20 WEBSITE A PRINTABLE VERSION OF THE SIGN REQUIRED UNDER THIS SUBSECTION.

21 (G) ANNUAL REPORT.

22 ON OR BEFORE JULY 1 OF EACH YEAR, THE OFFICE OF EQUITY AND CIVIL RIGHTS SHALL
23 SUBMIT A REPORT TO THE MAYOR AND CITY COUNCIL THAT INCLUDES:

24 (I) THE NEWLY-DETERMINED AVERAGE PER-EMPLOYEE TOTAL BENEFIT RATE; AND

25 (II) THE NEWLY-DETERMINED AVERAGE PER-EMPLOYEE WAGE RATE.

26 SECTION 3. AND BE IT FURTHER ORDAINED, That the Laws of Baltimore City read as
27 follows:

Council Bill 25-0116

Baltimore City Code

Article 11. Labor and Employment

Division I. Minimum Wage Law

Subtitle 3. Wage Requirements

§ 3-9. SECURITY GUARDS.

(A) DEFINITIONS.

(1) IN GENERAL.

IN THIS SECTION, THE FOLLOWING TERMS HAVE THE MEANINGS INDICATED.

(2) COMPENSATION.

"COMPENSATION" MEANS ANY COMBINATION OF WAGES, BENEFITS, AND PAID TIME OFF.

(3) COVERED SECURITY GUARD.

(i) IN GENERAL.

"COVERED SECURITY GUARD" MEANS ANY INDIVIDUAL EMPLOYED IN BALTIMORE CITY BY A COVERED SECURITY EMPLOYER WHO PRINCIPALLY PERFORMS 1 OR MORE OF THE FOLLOWING FUNCTIONS:

(A) PROTECTS INDIVIDUALS OR PROPERTY FROM HARM, THEFT, OR OTHER UNLAWFUL ACTIVITY;

(B) DETERS, OBSERVES, DETECTS, OR REPORTS INCIDENTS IN ORDER TO PREVENT ANY UNLAWFUL OR UNAUTHORIZED ACTIVITY, INCLUDING UNLAWFUL OR UNAUTHORIZED INTRUSION OR ENTRY, LARCENY, VANDALISM, ABUSE, ARSON, OR TRESPASS ON PROPERTY; OR

(C) RESPONDS TO A TRIGGERED SECURITY SYSTEM ALARM IN ORDER TO PREVENT OR DETECT UNAUTHORIZED INTRUSION, ROBBERY, BURGLARY, THEFT, PILFERAGE, AND OTHER LOSSES OR TO MAINTAIN SECURITY OF A PROTECTED PREMISES.

(ii) EXCLUSIONS.

"COVERED SECURITY GUARD" DOES NOT INCLUDE:

(A) A MARINE GUARD OR SHIP WATCHMAN, REGARDLESS OF WHETHER THE GUARD OR WATCHMAN IS STATIONED ABOARD A SHIP OR ON A PIER; OR

(B) AN UNARMED EMPLOYEE OF A BAR, TAVERN, OR RESTAURANT.

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(4) COVERED SECURITY EMPLOYER.

“COVERED SECURITY EMPLOYER” MEANS ANY PERSON, FIRM, LIMITED LIABILITY COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY OR DEPARTMENT OF SUCH FIRM, LIMITED LIABILITY COMPANY, CORPORATION, OR PUBLIC ENTITY EMPLOYING 2 OR MORE COVERED SECURITY GUARDS OR INDIVIDUALS BEING SELF-EMPLOYED AS A SECURITY GUARD ON EITHER A PROPRIETARY BASIS FOR ITS OWN USE OR ON A CONTRACTUAL BASIS FOR USE BY ANOTHER PERSON, FIRM, LIMITED LIABILITY COMPANY, CORPORATION, PUBLIC ENTITY OR SUBSIDIARY THEREOF WITHIN THE CITY.

(5) MINIMUM COMPENSATION.

(I) IN GENERAL.

“MINIMUM COMPENSATION” MEANS THE COMPENSATION AMOUNT A COVERED SECURITY EMPLOYER IS REQUIRED TO PAY TO A COVERED SECURITY GUARD PURSUANT TO THIS SECTION.

(II) EXCLUSIONS.

“MINIMUM COMPENSATION” DOES NOT INCLUDE ALL OTHERWISE LEGALLY-REQUIRED BENEFITS, WITH THE EXCEPTION OF:

(A) FEDERAL HOLIDAYS; AND

(B) THE SUPPLEMENT BENEFIT RATE REQUIRED BY § 3-1604(A)(2)(II) OF THE STATE LABOR AND EMPLOYMENT ARTICLE.

(B) MINIMUM COMPENSATION DETERMINATION.

(1) IN GENERAL.

THE MINIMUM COMPENSATION AMOUNT FOR A COVERED SECURITY GUARD IN THE CITY MAY NOT BE LESS THAN, FOR THE GUARD 1 CLASSIFICATION ESTABLISHED BY THE UNITED STATES SECRETARY OF LABOR PURSUANT TO CHAPTER 67 OF 41 U.S.C. § 6701 ET SEQ., AS AMENDED, THE COMBINED VALUE OF THE MINIMUM WAGE RATE, HEALTH AND WELFARE RATE, AND PAID VACATION AND HOLIDAYS RATES SET FORTH IN THE LOCALITY WAGE DETERMINATION ISSUED BY THE ADMINISTRATOR OF THE WAGE AND HOUR DIVISION OF THE EMPLOYMENT STANDARDS DIVISION OF THE U.S. DEPARTMENT OF LABOR FOR THE AREA THAT INCLUDES THE CITY.

(2) DETERMINATION BY WAGE COMMISSION.

THE WAGE COMMISSION, WITH THE ASSISTANCE OF THE OFFICE OF EQUITY AND CIVIL RIGHTS, SHALL ANNUALLY DETERMINE THE MINIMUM COMPENSATION AMOUNT REQUIRED UNDER PARAGRAPH (1) OF THIS SUBSECTION BY JULY 1 OF EACH YEAR.

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1 (3) EFFECTIVE DATE.

2 THE MINIMUM COMPENSATION AMOUNT ESTABLISHED UNDER THIS SUBSECTION SHALL
3 BE EFFECTIVE THE FOLLOWING YEAR FROM JANUARY 1 THROUGH DECEMBER 31.

4 (C) POSTING REQUIREMENT.

5 THE OFFICE OF EQUITY AND CIVIL RIGHTS SHALL POST THE MINIMUM COMPENSATION
6 DETERMINATION MADE UNDER SUBSECTION (B) OF THIS SECTION ON THE CITY'S WEBSITE
7 NO LATER THAN JULY 1 OF EACH YEAR.

8 (D) COVERED SECURITY EMPLOYER REQUIREMENT.

9 SUBJECT TO THE OTHER PROVISIONS OF THIS DIVISION I, A COVERED SECURITY EMPLOYER
10 SHALL, AT A MINIMUM, PAY EACH COVERED SECURITY GUARD THE MINIMUM
11 COMPENSATION AMOUNT DETERMINED BY THE WAGE COMMISSION UNDER SUBSECTION
12 (B) OF THIS SECTION.

13 (E) VIOLATION.

14 IT IS A VIOLATION OF THIS DIVISION I FOR A COVERED SECURITY EMPLOYER TO PAY A
15 COVERED SECURITY GUARD LESS THAN THE MINIMUM COMPENSATION AMOUNT REQUIRED
16 BY THIS SECTION.

17 (F) EMPLOYER TO DISPLAY.

18 (1) IN GENERAL.

19 UPON THE TAKING EFFECT OF THE COMPENSATION DETERMINATION UNDER THIS
20 SECTION, A COVERED SECURITY EMPLOYER SHALL POST A SIGN, MEASURING AT
21 LEAST 3 BY 5 INCHES IN SIZE, THAT INCLUDES:

22 (I) THE REQUIRED COMPENSATION AMOUNT;

23 (II) A CITATION OF THE APPLICABLE SECTIONS OF CITY CODE; AND

24 (III) THE CONTACT INFORMATION FOR THE WAGE COMMISSION.

25 (2) LOCATION.

26 THE COVERED SECURITY EMPLOYER SHALL POST THE SIGN REQUIRED UNDER THIS
27 SUBSECTION:

28 (I) IN CLEAR VIEW OF EMPLOYEES; AND

29 (II) WHERE SIMILAR NOTICES ARE CUSTOMARILY POSTED.

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1 **(3) OECR TO POST.**

2 **THE OFFICE OF EQUITY AND CIVIL RIGHTS SHALL COMPILE AND POST ON THE CITY'S**
3 **WEBSITE A PRINTABLE VERSION OF THE SIGN REQUIRED UNDER THIS SUBSECTION.**

4 **SECTION 4. 3. AND BE IT FURTHER ORDAINED,** That Section 1 of this Ordinance shall take
5 effect on the date it is enacted. It shall remain effective until the end of December 31, 2026, at
6 which time, with no further action required by the City Council, Section 1 of this Ordinance shall
7 be abrogated and of no further force and effect.

8 **SECTION 5. 4. AND BE IT FURTHER ORDAINED,** That the minimum compensation amount
9 determined under Section 1 of this Ordinance by the Wage Commission as of July 1, 2026, shall
10 be effective the following year from January 1, 2027 through December 31, 2027.

11 **SECTION 6. AND BE IT FURTHER ORDAINED,** That, Section 2 of this Ordinance shall take
12 effect on January 1, 2027. It shall remain effective until the end of December 31, 2031, at which
13 time, with no futher action required by the City Council, Section 2 of this Ordinance shall be
14 abrogated and of no further force and effect.

15 **SECTION 7. AND BE IT FURTHER ORDAINED,** That, the minimum compensation amount
16 determined under Section 2 of this Ordinance by the Wage Commission as of July 1, 2031, shall
17 be effective the following year from January 1, 2032 through December 31, 2032.

18 **SECTION 8. 5. AND BE IT FURTHER ORDAINED,** That, except as provided in Section 3 and
19 ~~Section 4~~ 4, Section 5, Section 6, and Section 7 of this Ordinance, this Ordinance shall take
20 effect January 1, 2027. 2032.

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Certified as duly passed this 9th day of February, 2026



President, Baltimore City Council

Certified as duly delivered to His Honor, the Mayor,

this 10th day of February, 2026



Chief Clerk

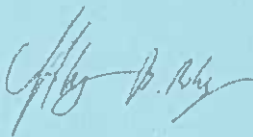
Approved this 9th day of March, 2026



Mayor, Baltimore City

Approved for Form and Legal Sufficiency.

this 10th day of February, 2026



Chief Solicitor